

PRESCOTT VANE LLP —RECORDS & INFORMATION GOVERNANCE
Mail Journal Archive —Targeted Search Report
PRIVILEGED AND CONFIDENTIAL —PREPARED AT DIRECTION OF COUNSEL

Report date: January 9, 2025

Requested by: E. Stanhope, General Counsel (written authorization December 17, 2024)

Run by: H. Grady, Director, Records & Information Governance

Matter: 2011-0284 (Torvane Industrial Group / Kelling Station Unit 2)

Purpose: Locate any written confirmation limiting the scope of the firm's engagement with respect to the Brandt Thermal Systems warranty claim.

1. The archive

The firm mail journal archive has captured every message sent or received on the firm's mail system since October 2007, at transmission, with attachments, under Records Policy 7.1. It is independent of the document management system and was not part of the February 2016 Casebridge–Novarra migration. The 2009–2014 slice comprises approximately **19 million messages**.

2. Search parameters and run statistics

Parameter	Value
Participants	rtenniel@torvaneindustrial.com; a.pellum, c.wisner, l.ames @prescottvane.com
Terms	"2011-0284"; "Brandt"; "scope"; "tolling"; "confirmation"
Window	January 1, 2011 –December 31, 2011
Run date/time	January 8, 2025, 15:22; runtime 14 minutes
Candidate set	2,347 messages
Responsive after review	41 messages
Of which: the 2011 matter sequence	11 messages (Exhibits A-1 –A-11)

3. The 2011 matter sequence (Exhibits A-1 –A-11)

Ex.	Date (2011)	From	Subject / description
A-1	Mar 24	R. Tenniel	Kelling Station Unit 2 —commissioning failures —need litigation counsel
A-2	Mar 30	D. Kraljic	Conflicts clearance —report attached
A-3	Apr 04	A. Pellum	Engagement letter —Matter 2011-0284

Ex.	Date (2011)	From	Subject / description
A-4	Apr 07	R. Tenniel	RE: engagement letter —
A-5	May 17	C. Wisner	countersigned Case assessment — limitations issue (memo attached)
A-6	May 19	A. Pellum	The Brandt Thermal warranty claim — recommendation
A-7	May 26	R. Tenniel	RE: Brandt Thermal — sole-source relationship
A-8	Jun 08	A. Pellum	Memo of call with R. Tenniel (memo attached)
A-9	Jun 09	R. Tenniel	Scope of engagement — written confirmation re Brandt Thermal Systems, with signed letter attached
A-10	Jun 10	A. Pellum	Scope confirmation received — close the Brandt tickler
A-11	Jul 19	A. Pellum	Arbitration demand filed

All eleven messages were recovered complete, with all attachments intact, including `Torvane_Scope_Confirmation_2011-06-09.pdf` (signed letter, Torvane letterhead) at Exhibit A-9.

4. Key finding

Exhibit A-9, June 9, 2011, R. Tenniel to A. Pellum, cc W. Hagerman, states that the firm's engagement under Matter 2011-0284 "is limited to Torvane's claims against Ridgeline Constructors, Inc."; that Torvane "has elected not to assert" the Brandt Thermal warranty claim; that the claim "is expressly outside the scope of your engagement," with the firm "not asked to take any step to evaluate, preserve, or pursue it"; that the company was advised of and accepts the limitations consequences; and that the confirmation "is not limited to any period and stands unless I withdraw it in writing." The signed letter attached to the message states the same in numbered paragraphs.

5. Chain of custody

Messages are journal captures made at transmission in 2011. Export performed January 8–9, 2025 to a locked evidence share; SHA-256 hashes computed at export and verified against the archive's stored capture hashes—all 41 verified (e.g., Exhibit A-9 message hash 3f8a...c412, attachment hash 9b07...e1d8; full manifest at Appendix 1, not excerpted). The export set is preserved under the litigation hold of November 14, 2024.

6. Further work

A second pass extending the window over 2012–2014 (audit-response and closing correspondence) is running and will be reported separately.

H. Grady